

SENATE BILL 2526

By Hatcher

AN ACT to amend Tennessee Code Annotated, Title 5,
Chapter 14, Part 1 and Section 5-21-130, relative
to the sale of surplus real property by counties.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Section 5-14-108, is amended by adding the following as a new subsection:

(q) Notwithstanding another law to the contrary, a county may sell real property that has been declared surplus, obsolete, or unusable in an arms-length transaction to a third party for a price not less than its fair market value as determined by at least two (2) appraisers duly licensed in this state without requiring public auction or sealed bids, upon approval by a majority vote of the county legislative body.

SECTION 2. Tennessee Code Annotated, Section 5-21-130, is amended by designating the existing language subsection (a) and adding the following as a new subsection (b):

(b) Notwithstanding another law to the contrary, a county may sell real property that has been declared surplus, obsolete, or unusable in an arms-length transaction to a third party for a price not less than its fair market value as determined by at least two (2) appraisers duly licensed in this state without requiring public auction or sealed bids, upon approval by a majority vote of the county legislative body.

SECTION 3. If any provision of this act or its application to any person or circumstance is held invalid, then the invalidity does not affect other provisions or applications of the act that can be given effect without the invalid provision or application, and to that end, the provisions of this act are severable.

SECTION 4. This act takes effect upon becoming a law, the public welfare requiring it.